

The Land Ports Authority of India Rules, 2011

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Union of India - Act

The Land Ports Authority of India Rules, 2011

UNION OF INDIA

India

The Land Ports Authority of India Rules, 2011

Rule THE-LAND-PORTS-AUTHORITY-OF-INDIA-RULES-2011 of 2011

Published on 20 July 2011

Commenced on 20 July 2011

[This is the version of this document from 20 July 2011.]

[Note: The original publication document is not available and this content could not be verified.]

The Land Ports Authority of India Rules, 2011

Published vide Notification No. G.S.R. 556(E), dated 20th July, 2011

Ministry of Home Affairs

(Department of Border Management)

G.S.R. 556(E). - In exercise of the powers conferred by sub-section (2) of section 34 of the Land Ports Authority of India Act, 2010 (

31 of 2010

), read with section 22 of the General Clauses Act, 1897 (

10 of 1897

) and in so far as the rules and form relating to audit and accounts in consultation with the Comptroller and Auditor General of India, the Central Government hereby makes the following rules, namely:-

Chapter I

Preliminary

1.

Short title and commencement.

(1)

These rules may be called the Land Ports Authority of India Rules, 2011.

(2)

They shall come into force on the date on which the Land Ports Authority of India Act, 2010 (31 of 2010

) shall come into force.

2.

Definitions.

(1)

In these rules, unless the context otherwise requires, -

(a)

"Act" means the Land Ports Authority of India Act, 2010 (31 of 2010

);

(b)

"Member" means the member of the Authority;

(c)

"annual statement of accounts" means the annual statement of accounts referred to in section 25;

(d)

"annual report" means the report referred to in section 26;

(e)

"section" means the section of the Act.

(2)

Words and expressions used herein and not defined, but defined in the Act shall have the same meaning respectively as assigned to them in the Act.

Chapter II

Conditions of Service of the Chairperson and Other Members of the Authority

3.

Terms of office and conditions of service of the Members.

(1)

The Chairperson of the Land Ports Authority of India shall be of the rank of Additional Secretary to the Government of India and shall be chosen from amongst persons who have special knowledge and experience in the field of security, transport, industry, commerce, law, finance or public administration.

(2)

The Member (Planning and Development) and Member (Finance) shall be of the level of Joint Secretary to the Government of India and the Member (Planning and Development) shall be chosen from amongst persons who have special knowledge and experience in the field of Planning and Development and the Member (Finance) shall be chosen from amongst persons who have special knowledge and experience in the field of finance and commerce.

(3)

The Chairperson, Member (Planning and Development) and Member (Finance) shall be whole-time Members of the Authority.

(4)

Subject to the provision of section 6, every whole-time Member shall hold office for a period of five years from the date on which he assumes office or till he attains the age of sixty years, whichever is earlier.

(5)

The Member who shall be appointed by the Central Government to represent the recognised bodies of workers shall hold office for a period of three years.

(6)

The Member who shall be appointed by the Central Government to represent the traders shall hold office for a period of three years.

(7)

The Central Government may co-opt such other representatives for functional purposes for period of three years.

4.

Mode of Recruitment.

(1)

The Chairperson, Member (Planning and Development) and Member (Finance) shall be appointed by the Central Government from amongst a panel of names to be prepared by a Search-cum-Selection Committee headed by the Secretary (Border Management) in the Ministry of Home Affairs.

(2)

The search-cum-Selection Committee, constituted by the Central Government for preparation of the panel of names for appointment to the office of the Chairperson and two whole-time Members of the Authority shall consist of-

(i)

Secretary, Department of Revenue;

(ii)

Secretary, Department of Commerce;

(iii)

Advisor, Planning Commission; and

(iv)

One Member from outside as a subject expert,

(3)

The Joint Secretary (Border Management) shall be the convener of the Committee.

(4)

Search-cum-Selection Committee shall regulate its own procedure for selecting the Chairperson and the other whole-time Members.

(5)

The Chairperson and other whole-time Members may be selected on deputation or contract basis through an open advertisement.

(6)

In case the appointment is on deputation basis, -

(i)

a person who is in the service of the Government of India or of a State Government shall not be appointed as the Chairperson of the Authority unless such person has held-

(A)

a post equivalent to that of Additional Secretary to the Government of India; or

(B)

Joint Secretary to the Government of India or equivalent for a period of not less than five years; and

(ii)

a person who is in the service of Government of India or of a State Government shall not be appointed as whole time Member of the Authority unless such person has held-

(A)

a post equivalent to the Joint Secretary to the Government of India; or

(B)

Director to the Government of India or equivalent for a period of not less than four years.

(7)

In case the appointment is on contract basis, the eligibility shall be determined by the Search-cum-Selection Committee:

5.

Salary and allowances.

(1)

The Chairperson shall be paid salary and allowances as admissible to the post of Additional Secretary to the Government of India.

(2)

The Member (Planning and Development) and the Member (Finance) shall be paid salary and allowances as admissible to the post of Joint Secretary to the Government of India.

6.

Fee.

- Every other Member, who is not a whole-time Member or an ex-officio Member or a representative of a State Government, shall be paid a lump sum amount not exceeding Rs. 3500/- as fee for each day he attends the meetings of the Authority or of any Committee duly constituted by the Authority.

7.

Residential accommodation.

(1)

The Chairperson and the other two whole-time Members shall be entitled to residential accommodation to be provided by the Authority which would be at par with the Officers of equivalent status in the Central Government.

(2)

In case of accommodation is arranged by the Authority ten percent of the basic pay shall be deducted from the salary of the Chairperson, or Member concerned and no house rent allowance-shall be paid to him.

(3)

In case accommodation is not arranged by the Authority to the Chairperson or to any other whole-time Member, the chairperson and such other Member, as the case may be, shall be paid house rent allowance at the rate of thirty per cent of his basic pay.

8.

Use of vehicles.

- The vehicle used by the Chairperson and the whole-time Members for private purposes shall be regulated in accordance with the instructions issued by the Central Government in this regard from time to time.

9.

Travelling allowance and daily allowances.

(1)

The Chairperson and whole time Members shall be entitled to travelling allowance and daily allowance at the same rates as is applicable to the equivalent officers of the Government of India.

(2)

Every ex-officio Member or a representative of a State Government shall be entitled to travelling allowance and daily allowance from the source from which such member draws his salary at the rates admissible to him according to the rules of that Government.

(3)

The ex-officio Members and Members representing the States Governments concerned shall be entitled for accommodation according to their eligibility at the meeting place of the authority if such meeting is held outside the headquarter of the authority.

(4)

In case of other Members, economy class air travel from and to his or her ordinary place of residence and the place of the meeting of the Authority or its Committee, shall be payable.

(5)

Travel in Air Conditioned-I class by train or taxi charges where air or train connectivity is not existent shall be admissible and such Members shall also be eligible for accommodation as eligible for Joint Secretary level officers of the Government of India at the place of meeting of the Authority or its Committee, as the case may be.

10.

Period of notice for termination or resignation.

(1)

A whole-time member or a part-time member may, by giving notice in writing of not less than thirty days to the Central Government, resign his office.

(2)

The Central Government terminate, -

(a)

the appointment of a whole-time Member or part-time member, as the case may be, after giving him a notice of not less than three months, or in lieu thereof, on payment of an amount equal to his salary and allowance, if any, for a period of three months;

(b)

the appointment of any Member who is a servant of the Central Government or the State Government at any time.

(3)

The appointment of a Member shall not be terminated without giving him a reasonable opportunity of being heard.

11.

The vacancy arising out of the resignation of any whole time Member or part-time Member or by way of removal of any whole-time Member or part-time Member under section 6, shall not be left unfilled for more than six months from the date of occurrence of vacancy.

Chapter III

Manner of Investment of Funds by Authority

12.

Manner of investment of Funds.

- The Authority may invest its funds (including any reserve fund) -

(a)

in the securities of the Central Government; or

(b)

in fixed deposits with, -

(i)

the State Bank of India constituted under the State Bank of India Act, 1955 (

23 of 1955

); or

(ii)

any subsidiary bank constituted under the State Bank of India (Subsidiary Banks) Act, 1959 (38 of 1959); or

(iii)

any corresponding new bank as specified in column 2 of the First Schedule to the Banking Companies (Acquisition and Transfer of Undertakings) Act, 1970 (

5 of 1970

) and the Banking Companies (Acquisition and Transfer of Undertakings) Act, 1980 (

40 of 1980

); or

(iv)

any bank as specified in the Second Schedule of the Reserve Bank of India Act, 1934 (

2 of 1934

); or

(v)

any other public financial institution as defined in Section 4-A of the Companies Act, 1956 (

1 of 1956

),

subject to such conditions as may, from time to time, be specified by the Central Government.

Chapter IV

Annual Statement of Accounts of the Authority

13.

Preparation and submission of Annual Statement of Accounts.

(1)

The Authority shall prepare its Annual Statement of Accounts including the income and expenditure accounts or profit

and loss account, receipts and payment accounts and balance sheet in the format of the financial statements laid down by the Government of India in the Ministry of Finance under rule 209 of the General Financial Rules, as specified in Forms I to III and schedules 1 to 25 which form part of the accounts appended to these Rules, showing the financial results of the previous financial year and submit the same, duly approved by the authority and authenticated by the Financial Head or Secretary in the authority to the Comptroller and Auditor General of India, not later than the 30th June of every year who shall audit the accounts of the authority and report thereon and the authority shall preserve the period of five year:

Provided that the Central Government may, for reasons to be recorded in writing and in consultation with the Comptroller and Auditor General of India, extend the date of submission of the Annual Statement of Accounts by such period as it may deem necessary.

(2)

After certification of the Annual Statement of Accounts by the Comptroller and Auditor General of India or any other person authorised by him in this behalf, the Annual Statement of Accounts together with the Audit report thereon, shall be forwarded annually to the Central Government within a period of three months from the date of submission of the Annual Statement of Accounts to the Comptroller and Auditor General of India.

Chapter V

Annual Report of the Authority

14.

Submission of Annual Report.

(1)

The Authority shall prepare the Annual Report immediately, and not later than six months, after the end of each financial year giving an account of its activities during that financial year and also giving an account of the activities which are likely to be undertaken by the Authority during the next financial year and forward the Annual Report to the Central Government for being laid before each House of Parliament.

(2)

The form of the Annual Report of the Authority shall contain the matters specified in the Form IV appended to these Rules.

Form I

(See sub-rule (1) of rule 13)

Form of Financial Statements

The Land Ports Authority of India

Balance Sheet as at _____

(Amount-Rs)

Corpus/Capital Fund and Liabilities

Schedule

Current year

Previous year

Corpus/Capital Fund

1

?...

?...

Reserves and Surplus

2

?...

?...

Earmarked/Endowment Funds

3

?...

?...

Secured Loans and Borrowings

4

?...

?...

Unsecured Loans and Borrowings

5

?...

?...

Deferred Credit liabilities

6

?...

?...

Current Liabilities and Provisions

7

?...

?...

Total

?...

?...

Assets

?...

?...

Fixed Assets

8

?...

?...

Investments-form Earmarked/Endowment Funds

9

?...

?...

Investment-others

?...

?...

Current Assets, Loans, Advances etc.

10

?...

?...

Miscellaneous Expenditure(to the extent not written off or adjusted)

11

?...

?...

Total

Significant Accounting Policies

24

?...

?...

Contingent Liabilities and Notes on Accounts

25

?...

?...

Form II

(See sub-rule (1) of rule 13)

Form of Financial Statements

The Land Ports Authority of India

Income and Expenditure Account for the Period/Year ending 31st March _____

(Amount-Rs)

(A) Income

Schedule

Current year

Previous year

Income from sales/service

12

?...

?...

Grants/Subsidies

13

?...

?...

Fees/Subscriptions

14

?...

?...

Income from investments (income on Invest, From
earmarked/endow. Funds transferred to funds)

15

?...

?...

Income from Royalty, Publication etc.

16

?...

?...

Interest Earned

17

?...

?...

Other Income

18

?...

?...

Increase (decrease) in stock of Finished goods and
works-in-progress

19

?...

?...

Total (A)

?...

?...

(B) Expenditure

Establishment Expenses

20

?...

?...

Other Administrative Expenses etc.

21

?...

?...

Expenditure on Grants, Subsidies etc.

22

?...

?...

Interest

23

?...

?...

Depreciation (Net Total at the year-end-corresponding to
Schedule 8)

Total (B)

?...

?...

Balance being excess of income over Expenditure (A-B)Transfer
to Special Reserve (Specify each)Transfer in from General
Reserve.

Balance Bring Surplus (Deficit) Carried to Corpus/Capital Fund
Significant Accounting Policies

24

Contingent Liabilities and Notes on Accounts

25

Form of Financial Statements

The Land Ports Authority of India

Forming Part of Balance Sheet as at _____

(Amount-Rs)

Current year

Previous year

Schedule-1

?...

?...

?...

Corpus/Capital Fund:

Balance as at the beginning of the year

Add: Contributions towards Corpus/Capital Funds

Add/(Deduct) : Balance of net income/(expenditure) transferred
from the Income and Expenditure Account

?...

?...

?...

?...

Balance as at the year end

?...

?...

Schedule 2

Current year

Previous year

Reserves and Surplus:

1. Capital Reserve :

?.
?.
?.
?.

As per last Account

?.
?.
?.
?.

Addition during the year

?.
?.
?.
?.

Less: Deductions during the year

2. Revaluation Reserve :

As per last Account

?.
?.
?.
?.

Addition during the year

?.
?.
?.
?.

Less: Deductions during the year

?.
?.
?.
?.

3. Special Reserve :

As per last Account

?.
?.
?.
?.

Addition during the year

?.
?.
?.
?.

Less: Deductions during the year

?.
?.
?.
?.

4. General Reserve:

As per last Account

?.
?.

?.

?.

Addition during the year

?.

?.

?.

?.

Less: Deductions during the year

?.

?.

?.

?.

Total

?.

?.

Form of Financial Statements

The Land Ports Authority of India

Forming Part of Balance Sheet as at _____

(Amount-Rs)

Schedule 3-

FUND-WISE BREAK UP

TOTALS

Earmarked/Endowment Funds

Fund WW

Fund XX

Fund YY

Fund ZZ

Current year

Previous year

a) Opening balance of the funds

b) Additions to the Funds:

i. Donations/grants

ii. Income from Investment made on
account of funds

iii. Other additions (specify nature)

Total (a+b)

c) Utilisation/Expenditure towards
objectives of funds

i. Capital Expenditure

-Fixed Assets

-Others

Total:

ii. Revenue Expenditure

-Salaries, Wages and allowances

etc.

-Rent

-Other Administrative expenses

Total:

Total (c)

Net Balance as at the year-end (a+b-c)

Notes1) Disclosures shall be made under relevant

heads based on conditions attaching to the grants.2) Plan

Funds received from the Central/State Governments are to shown as separate Funds and not to be mixed up with any other Funds.

Form of Financial Statements

The Land Ports Authority of India

Forming Part of Balance Sheet as at _____

(Amount-Rs)

Schedule 4-

Current Year

Previous year

SECURED LOANS AND BORROWINGS :-

1. Central Government

2. State Government (Specify)

3. Financial Institutions

a) Term Loans

b) Interest accrued and due

4. Banks:

a) Term Loans

-Interest accrued and due

b) Other Loans (Specify)

-Interest accrued and due

5. Other Institutions and Agencies

6. Debentures and Bonds

7. Others (Specify)

Total

Note:Amounts due within one year

Form of Financial Statements

The Land Ports Authority of India

Forming Part of Balance Sheet as at -----

(Amount-Rs)

Schedules 5-

Current year

Previous year

Unsecured Loans Borrowings

1. Central Government

2. State Government (Specify)

3. Financial Institutions

4. Banks:

a) Term Loans

b) Other Loans (Specify)

5. Other Institutions and Agencies

6. Debentures and Bonds

7. Fixed Deposits

8. Other (Specify)

Total

Note:Amount due within one year

Schedule 6-

Current year

Previous year

Deferred Credit Liabilities:

Acceptances secured by hypothecation of capital

equipment and other assets other

Total

Note: Amounts due within one year

Form of Financial Statements

The Land Ports Authority of India

Forming Part of Balance Sheet as at -----

(Amount-Rs)

Schedule 7-

Current year

Previous year

Current Liabilities and Provisions

A. Current Liabilities

1. Acceptances

2. Sundry Creditors:

a) For Goods

b) Other

3. Advances Received

4. Interest accrued but not due on:

a) Secured Loans/borrowings

b) Unsecured Loans/borrowings

5. Statutory Liabilities:

a) Overdue

b) Others

6. Other current Liabilities

Total (A):

B. Provisions

1. For Taxation

2. Gratuity

3. Superannuation/Pension

4. Accumulated Leave Encashment

5. Trade Warranties/Claims

6. Other (Specify)

Total (B)

Total (A+B)

Form of Financial Statements

The Land Ports Authority of India

Forming part of Balance Sheet as at -----

(Amount-Rs)

SCHEDULES 8-

FIXED ASSETS DESCRIPTION

GROSS BLOCK

DEPRECIATION

NET BLOCK

Cost/Valuation as at beginning of the year

Addition during the year

Deductions during the year

Cost/Valuation at the year end

As at the beginning of the year

On the Additions during the year

On the Deduction during the year

Total up to the year-end

As at the current year-end

As at the previous year-end

A. FIXED ASSESTS:

1. Land

a) Freehold

b) Leasehold

2. Buildings:

a) On Freehold Land

b) On Leasehold Land

c) Ownership Flats/Premises

d) Superstructures on Land not belonging to the entity

3. Plant Machinery & Equipment

4. Vehicles

5. Furniture, Fixtures

6. Office Equipment

7. Computer/ Peripherals

8. Electric Installations

9. Library Books

10. Tubewells & W Supply

11. Other Fixed Assets

TOTAL OF

Current year

Previous year

B. CAPITAL WORK-IN-PROGRESS

Total

(Note: to be given as to cost of assests on hire purchase included above)

Form of Financial Statements

The Land Ports Authority of India

Forming Part of Balance Sheet as at -----

(Amount - Rs)

SCHEDULE 9-

Current year

Previous year

INVESTMENTS FORM EARMARKED/ENDOWMENT FUNDS

1. In Government Securities

2. Other approved Securities

3. Shares

4. Debentures and Bonds

5. Subsidiaries and Joint Ventures

6. Others (to be specified)

TOTAL

SCHEDULE 10-

Current year

Previous year

INVESTMENTS-OTHERS

1. In Government Securities

2. Other approved Securities

3. Shares

4. Debentures and Bonds

5. Subsidiaries and Joint Ventures

6. Others (to be specified)

TOTAL

Form of Financial Statements

The Land Ports Authority of India

Forming Part of Balance Sheet as at -----

(Amount - Rs)

SCHEDULE 11-

Current year

Previous year

Current Assests, Loans, Advances Etc.

A. Current Assests:

1. Inventories:

a) Stores and Spares

b) Loose Tools

c) Stock-in-trade

Finished Goods Work-in-progress Raw Materials

2. Sundry Debtors:

a) Debts Outstanding for a Period exceeding sex months

b) Others

3. Cash balances in hand

(including cheques/drafts and imprest)

4. Bank Balances:

a) With Scheduled Banks:

-On Current Accounts

-On Deposit Accounts

(includes margin money)

-On Savings Accounts

b) with non-Scheduled Banks:

-On Current Accounts

-On Deposit Accounts

-On Savings Accounts

5. Post Office-Savings Accounts

Total (A)

B. LOANS, ADVANCES AND OTHER ASSETS

1. Loans:

a) Staff

b) Other Entities engaged in activities/objectives similar to that of the Entity

c) Other (specify)

2. Advances and other amounts recoverable in cash or in kind or for value to be received:

a) On Capital Account

b) Prepayments

c) Others

3. Income Accrued:

a) On Investments from Earmarked/Endowment Funds

b) On Investments - Others

c) On Loans and Advances

d) Others

(includes income due unrealised-Rs.....)

4. Claims Receivable:

Total (B)

Total (A+B)

Form of Financial Statements

The Land Ports Authority of India

Forming Part of Income & Expenditure for the Period/year ended _____

(Amount - Rs.)

Schedule 12-

Current year

Previous year

Income From Sales/Services

1) Income from Sales

a) Sale of Finished Goods

b) Sale of Raw Material

c) Sale of Scraps

2) Income from Service

a) Labour and Processing Charges

b) Professional/Consultancy Services

c) Agency Commission and Brokerage

d) Maintenance Services (Equipment/Property)

e) Others (Specify)

Total

Schedule 13-

Current year

Previous year

GRANTS/SUBSIDIES(Irrevocable Grants & Subsidies Received)

1) Central Government

2) State Government(s)

3) Government Agencies

4) Institutions/ Welfare Bodies

5) International Organisations

6) Others (Specify)

Total

Schedule 14-

Current year

Previous year

FEES/SUBSCRIPTIONS

1) Entrance Fees

2) Annual Fees/Subscriptions

3) Seminar/Program Fees

4) Consultancy Fees

5) Others (Specify)

Total

Note - Accounting Policies towards each item are to be disclosed.

Schedule 15 - Income From Investments

Investment from

Earmarked Fund

Investment-Others

INCOME FROM INVESTMENTS(Income on Invest from Earmarked/Endowment Funds Transferred to Funds)

Current year

Previous year

Current year

Previous year

1) Interest

a) On Govt. Securities

b) Other Bonds/Debentures

2) Dividends

a) On shares

b) On Mutual Funds Securities

3) Rents

4) Others (Specify)

TOTAL

Transferred to Earmarked/Endowment Funds

Form of Financial Statements

The Land Ports Authority of India

Forming Part of Income & Expenditure for the Period/year ended _____

(Amount - Rs.)

Scheduled 16-

Current year

Previous year

INCOME FROM ROYALTY, PUBLICATION.

1) Income from Royalty

2) Income from Publications

3) Others (specify)

Total

Schedule 17 -

Current year

Previous year

Interest Earned

1) On Term Deposits:

a) With Scheduled Banks

b) With Non-Scheduled Banks

c) With Institution

d) Others

2) On Savings Accounts:

a) With Scheduled Banks

b) With Non-Scheduled Banks

c) Post Office Savings Accounts

d) Others

3) On Loans:

a) Employees/Staff

b) Others

4) Interest on Debtors and others Receivables

Total

Note - Tax deducted at source to be indicated

Form of Financial Statements

The Land Ports Authority of India

Forming Part of Income & Expenditure for the Period/year ended _____

(Amount - Rs.)

Schedule 18-

Current year

Previous year

Other Income

1) Profit on Sale/disposal of Assets:

a) Owned assets

b) Assets acquired out of grants, or received free of cost

2) Export Incentives realized

3) Fees for Miscellaneous Services

4) Miscellaneous Income

Total

Schedule 19-

Current year

Previous year,

Increase/Decrease in Stock of Finished Goods & Work in Progress

a) Closing Stock

-Finished Goods

-Works-in-progress

b) Less: Opening Stock

-Finished Goods

-Works-in-progress

NET INCREASE/DECREASE [a-b]

Schedule 20-

Current Year

Previous year

ESTABLISHMENT EXPENSES

i Salaries and Wages

ii Allowances and Bonus

iii Contribution to Provident Fund

iv Contribution to other Fund (specify)

v Staff Welfare Expenses

vi Expenses on Employees' Retirement and Terminal Benefits

vii Others (specify)

Total

Form of Financial Statements

The Land Ports Authority of India

Forming Part of Income & Expenditure for the Period/year ended _____

(Amount - Rs.)

Schedule 21-

Current year

Previous Year

OTHER ADMINISTRATIVE EXPENSES ETC.

a) Purchases

b) Labour and processing expenses

c) Cartage and Carriage Inwards

d) Electricity and power

e) Water Charges

f) Insurance

g) Repairs and maintenance

h) Excise Duty

i) Rent, Rates and Taxes

j) Vehicles Running and Maintenance

- k) Postage, Telephone and Communication Charges
- l) Printing and Stationary
- m) Travelling and Conveyance Expenses
- n) Expenses on Seminar/Workshops
- o) Subscription Expenses
- p) Expenses on Fees
- q) Auditors Remuneration
- r) Hospitality Expenses
- s) Professional Charges
- t) Provision for Bad and Doubtful Debts/Advances
- u) Irrecoverable Balances Written-off
- v) Packing Charges
- w) Freight and Forwarding Expenses
- x) Distribution Expenses
- y) Advertisement and Publicity
- z) Others (specify)

TOTAL

Form of Financial Statements

The Land Ports Authority of India

Forming Part of Income & Expenditure for the Period/year ended _____

(Amount - Rs.)

Schedule 22-

Current year

Previous year

EXPENDITURE ON GRANTS, SUBSIDIES ETC.

- a) Grants given to Institutions/Organisations
- b) Subsidies given to Institutions/ Organisations

Total

Note - Name of the Entities, their Activities along with the amount of Grants/Subsidies are to be disclosed.

Schedule 23-

Current year

Previous year

INTEREST

- a) On Fixed Loans
- b) On other Loans (including Bank Charges)
- c) Others (specify)

Total

Form of Financial Statements

The Land Ports Authority of India

Forming Part of the Accounts for the Period Ended _____

Schedule 24

Significant Accounting Policies (Illustrative)

1. Accounting Convention

The financial statements are prepared on the basis of historical cost convention, unless otherwise stated and on the accrual method of accounting.

2. Inventory Valuation

2.1

Stores and Spares (including machinery spares) are valued at cost.

2.2

Raw materials, semi-finished goods and finished goods are valued at lower of cost and net realizable value. The costs

are based on weighted average cost. Cost of finished goods and semi-finished goods is determined by considering material, labour and related overheads.

3. Investments

3.1

Investment classified as "long term investments" are carried at cost. Provision for decline, other than temporary, is made in carrying cost of such investments.

3.2

Investments classified as "Current" are carried at lower of cost and fair value. Provision for shortfall on the value of such investments is made for each investment considered individually and not on a global basis.

3.3

Cost includes acquisition expenses like brokerage, transfer stamps.

4. Excise Duty

Liability for excise duty in respect of goods produced by the entity, other than for exports, is accounted upon completion of manufacture and provision is made for excisable manufactured goods as at the year-end.

5. Fixed Assets

5.1

Fixed Assets are stated at cost of acquisition inclusive of inward freight, duties and taxes and incidental and direct expenses related to acquisition. In respect of projects involving construction, related pre-operational expenses (including interest on loans for specifies project prior to its completion), from part of the value of the assets capitalized.

5.2

Fixed Assets received by way of non-monetary grants,(others than towards the corpus Funds), are capitalized at values stated, by corresponding credit to Capital Reserve.

6. Depreciation

6.1

Depreciation is provided on straight-line method as per rates specified in the Income-tax Act, 1961 except depreciation on cost adjustments arising on account of conversion of foreign currency liabilities for acquisition of fixed assets, which is amortized over the residual life of the respective assets.

6.2

In respect of additions to/deductions from fixed assets during the year, depreciation is considered on pro-rata basis.

6.3

Assets costing Rs. 5,000 or less each are fully provided.

7. Miscellaneous Expenditure

Deferred revenue expenditure is written off over a period of 5 year it is incurred.

8. Accounting for Sales

Sale include excise duty and are not of sales returns, rebate and trade discount.

9. Government Grants/Subsidies

9.1

Government grants of the nature of contribution towards capital cost of setting up projects are treated as capital Reserve.

9.2

Grants in respect of specify fixed assets acquired are shown as a deduction from the cost of the related assets.

9.3

Government grants/subsidy are accounted on realization basis.

10. Foreign Currency Transactions

10.1

Transactions denominated in foreign currency are accounted at the exchange rate prevailing at the date of the transaction.

10.2

Current assets, foreign Currency loans and current liabilities are converted at the exchange rate prevailing as at the year end and the resultant gain/loss is adjusted to cost of fixed assets, if the foreign currency liability relates to fixed assets, and in other cases is considered to revenue.

11. Lease

Lease rentals are expensed with reference to lease terms.

12. Retirement Benefits

12.1

Liability towards gratuity payable on death/retirement of employees based on actuarial valuation.

12.2

Provision for accumulated leave encashment benefit to the employees is accrued and computed on the assumption that employees are entitled to receive the benefit as at each year end.

Form of Financial Statements

The Land Ports Authority of India

Forming Part of the Accounts for the Period Ended _____

Schedule 25

Contingent Liabilities and Notes on Accounts (Illustrative)

1. Contingent Liabilities

1.1

Claims against the Entity not acknowledged as debts - Rs. ----- (Previous year Rs.-----).

1.2

In respect of:

Bank guarantees given by/on behalf of the Entity-Rs (Previous year Rs. ----). Letters of Credit opened by bank on behalf of the Entity- Rs.---(Previous year Rs.-----).

Bills discounted with banks - Rs.----- (Previous year Rs.-----).

1.3

Disputed demands in respect of:

Income-tax Rs.----- (Previous year Rs.-----).

Sales-tax Rs.----- (Previous year Rs.-----).

Municipal Taxes.----- (Previous year Rs.-----).

1.4

In respect of claims from parties for non-execution of orders, but contested by the Entity - Rs.----- (Previous year Rs.-----).

2. Capital Commitments

Estimated value of contracts remaining to be executed on capital account and not provided for (net of advances) - Rs.----- (Previous year Rs.-----).

3. Lease Obligations

Future obligations for rentals under finance lease arrangements for plant and machinery amount to - Rs.----- (Previous year Rs.-----).

4. Current Assets, Loans And Advances

In the opinion of the Management, the current assets, loans and advances have a value on realization in the ordinary course of business, equal at least to the aggregate amount shown in the Balance Sheet.

5. Taxation

In view of there being on taxable income under Income tax Act 1961, no provision for Income tax has been considered necessary.

(Amount - Rs.)

6. Foreign Currency Transactions

Current Year

Previous Year

6.1 Value of Imports Calculated on C.I.F. Basic:

-Purchase of finished Goods-Raw Materials & Components

(Including in transit)-Capital Goods-Stores, Spares and

Consumables

6.2 Expenditure in foreign currency:

a) Travel b) Remittances and Interest payment to Financial

Institutions/Banks in Foreign Currency)c) Other expenditure:

-Commission on Sales-Legal and

Professional Expenses-Miscellaneous Expenses

6.3 Earnings:

Value of Exports on FOB basis

6.4 Remuneration to auditors:

As Auditors

-Taxation matters-For Management services-For certification-Other

7. Corresponding figures for the previous year have been regrouped/rearranged, wherever necessary.

8. Schedules 1 to 25 are annexed to and form an integral part of the Balance Sheet as at _____ and the Income and Expenditure Account for the year ended on that date.

Form III

(See rule (1) of rule 13)

Form of Financial Statements

The Land Ports Authority of India

Receipts and Payments for the Period/year Ended _____

(Amount-Rs.)

Receipts

Current year

Previous year

Payments

Currents year

Previous year

I. Opening Balances

a) Cash in handb)

Bank Balances

i) in current

accountsii) In deposit accountsiii) Savings accounts

I. Expenses

a) Establishment

Expense (corresponding to Schedule 20)b) Administrative

Expenses (corresponding to Schedule 21)

II. Grants Received

a) From Government of

Indiab) From State Governmentc) From other sources

(details)

(Grants for capital &

revenue exp. to be shown separately)

II. Payments made against funds for various

projects

(Name of the fund or

project should be shown along with the particulars of payments made for each project)

III. Income on Investments from

a) Earmarked/Endow.

Fundsb) Own Funds (Oth.. Investment)

III. Investments and deposits made

a) Out of

Earmarked/Endowment fundsb) Out of Own funds

(Investment-Others)

IV. Interest Received

a) On Bank depositsb) Loans, Advances etc.

IV. Expenditure on Fixed Assets & Capital

Work-in-Progress

a) Purchase of fixed

Assetsb) Expenditure on Capital Work-in-Progress

V. Other Income (Specify)

V. Refunds of surplus money/Loans

a) To the Government

of Indiab) To the State Governmentc) To other providers

of funds

VI. Amount Borrowed

VI. Finance Charges (Interest)

VII. Any other receipt (give details)

VII. Other Payments (specify)

VIII. Closing Balances

i) In current

accountsii) In deposit accountsiii) Savings accounts

a) Cash in handb)

Bank Balances

Total

Form IV

(See sub-rule (2) of rule 14)

(1)

A summary of the financial results during the year.

(2)

Changes in the capital structure, long-term loans and other significant items.

(3)

Important changes in policy and major events, which influenced or affected the profitability of the Authority during the year.

(4)

Measures taken for improving the functions and profitability of the Authority.

(5)

Progress in execution of the sanctioned schemes with reference to targets.

(6)

New projects or expansion schemes contemplated together with their advantages, financial implications and programmes for execution.

(7)

An account of the activities during the financial year and of the activities, which are likely to be taken up during the next financial year.

(8)

Significant events or happenings.

(9)

Changes in the Chairperson and Members of the Authority.

(10)

Employee-employer relations, strikes etc.

(11)

Welfare activities, housing colonies, education, health facilities etc.

(12)

Statistics or Graphs.

(13)

Foreign Exchange Earnings and Expenditure for Revenue and Capital items separately.

Related AI tags, queries and research notes

Translation